

Memorandum for Record – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: Mission and Installation Contracting Command, Fort Campbell, Kentucky/ Tennessee.

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order Number _____
☐ Blanket Purchase Agreement (BPA) Number _____
☐ Order/BPA# _____ against FSS Contract # _____
☐ Order # _____ against Multiple Award IDIQ Contract
Name or # _____
☐ Order # _____ against a single award IDC Contract

☐ Modification # _____ to existing PO/TO/DO/Call Order

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐
Cost Reimbursable ☐ Hybrid

Funds: ☒ Operations & Maintenance, Army (OMA) ☐ Other Funds: _____
FY: 25

Name of Proposed Contractor(s) and Address:
Department of Environment & Conservation
Tennessee
500 James Robertson Pkwy
Nashville, TN 37243-1204

Brand Name Buy: ☐ Yes ☒ No

3. Description of Services or Supplies: Tennessee Title V permit fee in accordance with Tennessee Annotated 1200-03 Air Pollution Control Regulations and Tennessee Annotated 1200-03-26 Administrative Fee Schedule.

Delivery Date: 15 March 2025

Total Value: \$20,709.94

4. Authority:

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

5. Reasons for Authority Cited:

a. Only the State of Tennessee can issue Air Quality permits in accordance with Tennessee 1200-03 Air Pollution Control Regulation and the Tennessee 1200-03-26 Administrative Fee Schedule. No other source exists.

b. Without this permit, there is a potential for a notice of violation (NOV) and monetary penalties. This could prevent Fort Campbell from operating the following permitted sources:

- Gravel Stockpiles at Roads and Grounds
- Generators on the Tennessee side: Approximately 30 generators, including those at Fire Station Bldg. 1747 and six fire pumps for the Sabre TUAV site
- Hospital: Unable to run three large boilers and three large emergency generators
- AFSBN: Two spray booths for ground vehicles will not be used for painting
- Range 28: Operations will be halted
- EOC (Mann Theater) Emergency Generator: The Emergency Operation Center will be unable to operate

Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☒ do not apply due to the \$ threshold, ☐ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____.

7. Market Research: This requirement has been determined commercial IAW the definition of commercial services stated in FAR 2.101. Market Research indicates that there is at least one (1) business that is available and capable to provide this service. Recommend this requirement be made Sole Source to the Department of Environment & Conservation Tennessee because only the State of Tennessee can issue Air Quality permits in accordance with Tennessee 1200-03 Air Pollution Control Regulation and the Tennessee 1200-03-26 Administrative Fee Schedule. No other source exists that can support Fort Campbell, KY, at this time. Offer shall be determined fair and reasonable prior to award.

8. Other Facts: None

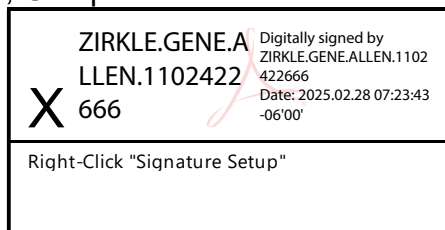
9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: Gene Zirkle

Date: 28 February 2025

Title: Chief, Compliance Branch

Signature:



10. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon price analysis and fair market value determined during market research.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: SFC Douglass Staub

Date:

Title: Contracting Officer

Signature:

